

FEDERAL MARITIME COMMISSION, WASHINGTON DC
Office of Administrative Law Judges

Muhammad Rana,
Complainant

V.

Michelle Franklin,
D.B.A "The Right Move Inc,"
Respondent

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Docket No. 19-03

Served: February 7, 2020

BEFORE: Honorable Erin M.WIRTH, *Administrative Law Judge.*

MOTION FOR CLARIFICATION

The Complainant is a pro se party to this case who does not have a legal background. Complainant has spent unlimited hours researching and attempting to follow rules and regulations governing this Complaint and following legal precedent.

Taking into account Complainant's pro se status, the Complainant respectfully requests the Honorable Judge to clarify part of the most recent ORDER dated February 6, 2020. While denying the Complainant's MOTION FOR FINDING OF ACTS AND DEFAULT DECISION, the Honorable Judge stated that the Complainant's discovery "*is relevant and necessary to pursue his claim.*" The Honorable Judge went on to state that "*it is therefore appropriate to find that Respondent's failure to provide documents and answer interrogatories leads to an inference that those responses would have been adverse to her interests.*"

The Complainant requests clarification whether this is an official finding and ruling of the Honorable Judge that it will be considered in the final Judgement. The Complainant hereby begs the Honorable Judge to issue to a new Clarification Order with the following rulings:

- 1) The Complainant's discovery request was relevant and necessary to his claim.
- 2) The Respondent's failure to provide requested documents and answer interrogatories leads to an inference that the evidence in those documents and answers would have been adverse to Respondent's case.
- 3) The final proposed finding of facts that will be submitted by the parties that relate to respondent's unanswered discovery will be affected by the Honorable Judge's adverse inference finding.

This requested clarification Order will not delay the revised schedule ordered by the Honorable Judge as the Complainant fully intends to submit his brief and proposed finding of facts by February 26, 2020.

Respectfully submitted by,



Muhammad J. Rana (Complainant)

I hereby certify that, on February 7, 2020, a copy of the foregoing attached Motion was sent to the following by the method indicated below:

FMC Administrative Judge
Erin M. Wirth

VIA Electronic Mail:
judges@fmc.gov

Michelle Franklin
D.B.A The Right Move, Inc.

VIA Electronic Mail:
mfranklin@therightmove4u.com



Muhammad J. Rana (Complainant)